

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                   |                                                                                          |                                            |                                                       |                                               |                                            |
|---------------------------------------------------|------------------------------------------------------------------------------------------|--------------------------------------------|-------------------------------------------------------|-----------------------------------------------|--------------------------------------------|
| Investigator:<br>Enoch Sowah                      | Team:<br>Squad #1                                                                        | CCRB Case #:<br>202003791                  | <input checked="" type="checkbox"/> Force             | <input checked="" type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.              |
|                                                   |                                                                                          |                                            | <input checked="" type="checkbox"/> Abuse             | <input checked="" type="checkbox"/> O.L.      | <input checked="" type="checkbox"/> Injury |
| Incident Date(s)<br>Saturday, 05/30/2020 11:55 PM | Location of Incident:<br>§ 87(2)(b) West 114th Street<br>and Frederick Douglas Boulevard |                                            | Precinct:<br>28                                       | 18 Mo. SOL<br>11/30/2021                      | EO SOL<br>5/4/2022                         |
| Date/Time CV Reported<br>Sun, 05/31/2020 2:54 PM  | CV Reported At:<br>CCRB                                                                  | How CV Reported:<br>Call Processing System | Date/Time Received at CCRB<br>Sun, 05/31/2020 2:54 PM |                                               |                                            |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |
|                    |      |              |
|                    |      |              |
|                    |      |              |
|                    |      |              |

| Witness(es) | Home Address |
|-------------|--------------|
|             |              |
|             |              |

| Subject Officer(s)       | Shield | TaxID  | Command |
|--------------------------|--------|--------|---------|
| 1. An officer            |        |        |         |
| 2. POM Damian Weber      | 25697  | 967387 | 028 PCT |
| 3. Officers              |        |        | 028 PCT |
| 4. POM Marc Hummel       | 23029  | 950604 | 028 PCT |
| 5. POM Sokol Karaduzovic | 12310  | 965766 | 028 PCT |
| 6. SGT Francisco Garcia  | 04765  | 945369 | 028 PCT |
| 7. LT Mervin Bennett     | 00000  | 920019 | 028 PCT |
| 8. POM Sean Sloman       | 16483  | 962110 | 028 PCT |

| Witness Officer(s)        | Shield No | Tax No | Cmd Name |
|---------------------------|-----------|--------|----------|
| 1. POM Walter Mancilla    | 26247     | 968597 | REC TNG  |
| 2. POM Christian Saal     | 26739     | 943766 | 028 PCT  |
| 3. POM Ian Abramowitz     | 00891     | 941307 | 028 PCT  |
| 4. POF Karen Zhao         | 17978     | 961476 | 028 PCT  |
| 5. POM Geraldo Rodriguez  | 18601     | 964249 | 028 PCT  |
| 6. LT Theodore Wells      | 00000     | 942694 | 028 PCT  |
| 7. POM Ahmed Aly          | 24874     | 963848 | 028 PCT  |
| 8. POM Marcelo Espinoza   | 20073     | 962388 | 028 PCT  |
| 9. POM Joshua Guevarra    | 18881     | 958662 | 028 PCT  |
| 10. POM Rafael Cruz       | 01198     | 965698 | 028 PCT  |
| 11. SGT Robert Czaplinski | 03952     | 945639 | 028 PCT  |
| 12. POM Frank Giarro      | 09850     | 950491 | 028 PCT  |
| 13. POM Thomas Mcguire    | 06228     | 960915 | 028 PCT  |

| <b>Witness Officer(s)</b>      | <b>Shield No</b> | <b>Tax No</b> | <b>Cmd Name</b> |
|--------------------------------|------------------|---------------|-----------------|
| 14. POM Joel Torres            | 26169            | 965571        | 028 PCT         |
| 15. POM Thomas Ye              | 05861            | 965629        | 028 PCT         |
| 16. POM Darrion Grant          | 16637            | 960614        | 028 PCT         |
| 17. POF Jenna Crawford         | 17282            | 967830        | 028 PCT         |
| 18. POM Jeffrey Martin         | 11623            | 960880        | 028 PCT         |
| 19. POF Ajdina Musovic         | 26990            | 965362        | 028 PCT         |
| 20. POF Alexa Ilowite          | 29942            | 967119        | 028 PCT         |
| 21. DTS Gregory Thursday       | 6267             | 935844        | 028 PCT         |
| 22. POM Felipe Ramirez         | 20745            | 968082        | 028 PCT         |
| 23. POM Keyana Kendall         | 17328            | 943432        | 028 PCT         |
| 24. POF Stephanie Hanna        | 27008            | 943941        | 028 PCT         |
| 25. POM Blair Bredwood         | 19205            | 958328        | PSA 6           |
| 26. POM Mark Testa             | 06980            | 966883        | 028 PCT         |
| 27. POF Caridad Garciatreminio | 22752            | 962422        | 028 PCT         |
| 28. POM Daniel Azzolino        | 20057            | 959465        | 028 PCT         |
| 29. POF Nicole Roark           | 18530            | 964243        | 028 PCT         |
| 30. SGT Syed Huda              | 01500            | 947088        | 028 PCT         |
| 31. POM Jose Gordian           | 19453            | 932733        | 028 PCT         |
| 32. POM Daniel McNulty         | 09790            | 925719        | 028 PCT         |
| 33. POM Justin Hartigan        | 01007            | 933835        | 028 PCT         |
| 34. POM Rusty Garcia           | 24538            | 933796        | 028 PCT         |
| 35. LT Williams Rosario        | 00000            | 931096        | PSA 6           |
| 36. POM Jose Pacheco           | 15684            | 944139        | PSA 6           |
| 37. POM Mark Bernard           | 02466            | 946780        | PSA 6           |
| 38. POM Andrew Dement          | 20946            | 965038        | PSA 6           |
| 39. POM Juan Carrero           | 00160            | 938174        | PSA 6           |
| 40. SGT Christian Sanchez      | 05453            | 947847        | PSA 6           |
| 41. POF Larissa Diaz           | 25779            | 963960        | PSA 6           |
| 42. POM Luis Carvajal          | 21859            | 946947        | PSA 6           |
| 43. POM Michael Monnelly       | 24913            | 946020        | PSA 6           |
| 44. LT Lamont Gibson           | 00000            | 944594        | PSA 6           |
| 45. POM Shahzeb Ahmed          | 26865            | 964865        | PSA 6           |
| 46. POM Shane Bula             | 31601            | 964948        | PSA 6           |
| 47. POM Kingsley Joachim       | 18313            | 950637        | PSA 6           |
| 48. POM Keph Etienne           | 06093            | 960511        | PSA 6           |
| 49. POM Johnpaul Pennacchia    | 09573            | 948115        | 028 DET         |
| 50. POM Patrick Reilly         | 18339            | 968733        | 028 PCT         |

| <b>Officer(s)</b> | <b>Allegation</b>                                                                                                   | <b>Investigator Recommendation</b> |
|-------------------|---------------------------------------------------------------------------------------------------------------------|------------------------------------|
| A.POM Marc Hummel | Force: In front of § 87(2)(b) in Manhattan,<br>Police Officer Marc Hummel used physical force against<br>§ 87(2)(b) |                                    |
| B.POM Marc Hummel | Force: In front of § 87(2)(b) in Manhattan,<br>Police Officer Marc Hummel used physical force against<br>§ 87(2)(b) |                                    |

| Officer(s)              | Allegation                                                                                                                                                                                               | Investigator Recommendation |
|-------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------|
| C.POM Marc Hummel       | Abuse: At the intersection of West 114th Street and Frederick Douglas Boulevard in Manhattan, Police Officer Marc Hummel threatened § 87(2)(b) with the use of force.                                    |                             |
| D.POM Marc Hummel       | Discourtesy: At the intersection of West 114th Street and Frederick Douglas Boulevard in Manhattan, Police Officer Marc Hummel spoke discourteously to § 87(2)(b)                                        |                             |
| E.POM Sean Sloman       | Force: At the intersection of West 114th Street and Frederick Douglas Boulevard in Manhattan, Police Officer Sean Sloman struck § 87(2)(b) with a baton.                                                 |                             |
| F.POM Sean Sloman       | Force: At the intersection of West 114th Street and Frederick Douglas Boulevard in Manhattan, Police Officer Sean Sloman struck § 87(2)(b) with a baton.                                                 |                             |
| G. An officer           | Force: At the intersection of West 114th Street and Frederick Douglas Boulevard in Manhattan, an officer struck § 87(2)(b) with a baton.                                                                 |                             |
| H. An officer           | Force: At the intersection of West 114th Street and Frederick Douglas Boulevard in Manhattan, an officer used a chokehold against § 87(2)(b)                                                             |                             |
| I. An officer           | Force: At the intersection of West 114th Street and Frederick Douglas Boulevard in Manhattan, an officer restricted § 87(2)(b)'s breathing.                                                              |                             |
| J. An officer           | Discourtesy: At the intersection of West 114th Street and Frederick Douglas Boulevard in Manhattan, an officer spoke discourteously to § 87(2)(b)                                                        |                             |
| K.SGT Francisco Garcia  | Force: At the intersection of West 114th Street and Frederick Douglas Boulevard in Manhattan, Sergeant Francisco Garcia used physical force against § 87(2)(b)                                           |                             |
| L.SGT Francisco Garcia  | Force: At the intersection of West 114th Street and Frederick Douglas Boulevard in Manhattan, Sergeant Francisco Garcia used physical force against § 87(2)(b)                                           |                             |
| M.SGT Francisco Garcia  | Discourtesy: At the intersection of West 114th Street and Frederick Douglas Boulevard in Manhattan, Sergeant Francisco Garcia spoke discourteously to § 87(2)(b)                                         |                             |
| N.POM Sokol Karaduzovic | Abuse: At the intersection of West 114th Street and Frederick Douglas Boulevard in Manhattan, Police Officer Sokol Karaduzovic threatened § 87(2)(b) with the use of force.                              |                             |
| O.POM Sokol Karaduzovic | Abuse: At the intersection of West 114th Street and Frederick Douglas Boulevard in Manhattan, Police Officer Sokol Karaduzovic threatened individuals with the use of force.                             |                             |
| P.POM Sokol Karaduzovic | Discourtesy: At the intersection of West 114th Street and Frederick Douglas Boulevard in Manhattan, Police Officer Sokol Karaduzovic spoke discourteously to § 87(2)(b) and individuals.                 |                             |
| Q.POM Sokol Karaduzovic | Off. Language: At the intersection of West 114th Street and Frederick Douglas Boulevard in Manhattan, Police Officer Sokol Karaduzovic made remarks to § 87(2)(b) and individuals based upon his gender. |                             |

| Officer(s)               | Allegation                                                                                                                                                                      | Investigator Recommendation |
|--------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------|
| R.POM Sokol Karaduzovic  | Discourtesy: At the intersection of West 114th Street and Frederick Douglas Boulevard in Manhattan, Police Officer Sokol Karaduzovic acted discourteously toward an individual. |                             |
| S.POM Sokol Karaduzovic  | Discourtesy: At the intersection of West 114th Street and Frederick Douglas Boulevard in Manhattan, Police Officer Sokol Karaduzovic spoke discourteously to an individual.     |                             |
| T.POM Sokol Karaduzovic  | Force: At the intersection of West 114th Street and Frederick Douglas Boulevard in Manhattan, Police Officer Sokol Karaduzovic used physical force against individuals.         |                             |
| U.POM Sokol Karaduzovic  | Force: At the intersection of West 114th Street and Frederick Douglas Boulevard in Manhattan, Police Officer Sokol Karaduzovic used physical force against § 87(2)(b)           |                             |
| V.POM Sokol Karaduzovic  | Force: At the intersection of West 114th Street and Frederick Douglas Boulevard in Manhattan, Police Officer Sokol Karaduzovic struck § 87(2)(b) with a baton.                  |                             |
| W.POM Sokol Karaduzovic  | Force: At the intersection of West 114th Street and Frederick Douglas Boulevard in Manhattan, Police Officer Sokol Karaduzovic struck § 87(2)(b) with a baton.                  |                             |
| X.POM Sokol Karaduzovic  | Force: At the intersection of West 114th Street and Frederick Douglas Boulevard in Manhattan, Police Officer Sokol Karaduzovic used physical force against § 87(2)(b)           |                             |
| Y.LT Mervin Bennett      | Force: At the intersection of West 114th Street and Frederick Douglas Boulevard in Manhattan, Lieutenant Mervin Bennett used physical force against § 87(2)(b)                  |                             |
| Z. An officer            | Abuse: At the intersection of West 114th Street and Frederick Douglas Boulevard in Manhattan, an officer threatened § 87(2)(b) with the use of force.                           |                             |
| 2A. Officers             | Force: At the intersection of West 114th Street and Frederick Douglas Boulevard in Manhattan, officers used physical force against § 87(2)(b)                                   |                             |
| 2B.POM Sokol Karaduzovic | Force: At the intersection of West 114th Street and Frederick Douglas Boulevard in Manhattan, Police Officer Sokol Karaduzovic used a chokehold against § 87(2)(b)              |                             |
| 2C.SGT Francisco Garcia  | Force: At the intersection of West 114th Street and Frederick Douglas Boulevard in Manhattan, Sergeant Francisco Garcia used physical force against § 87(2)(b)                  |                             |
| 2D.LT Mervin Bennett     | Abuse: At the intersection of West 114th Street and Frederick Douglas Boulevard in Manhattan, Lieutenant Mervin Bennett threatened § 87(2)(b) with the use of force.            |                             |
| 2E.POM Damian Weber      | Discourtesy: At the intersection of West 114th Street and Frederick Douglas Boulevard in Manhattan, Police Officer Damian Weber spoke discourteously to § 87(2)(b)              |                             |
| 2F.POM Damian Weber      | Abuse: At the intersection of West 114th Street and Frederick Douglas Boulevard in Manhattan, Police Officer Damian Weber made sexually suggestive remarks to § 87(2)(b)        |                             |
| 2G.POM Damian Weber      | Abuse: At the intersection of West 114th Street and Frederick Douglas Boulevard in Manhattan, Police Officer Damien Weber threatened § 87(2)(b) with the use of force.          |                             |

| Officer(s)            | Allegation | Investigator Recommendation |
|-----------------------|------------|-----------------------------|
| § 87(2)(g), § 87(4-b) |            |                             |

### Case Summary

On May 31, 2020, § 87(2)(b) called the CCRB and filed this complaint on behalf of herself, her boyfriend, § 87(2)(b) and a friend, § 87(2)(b).

On May 30, 2020, at approximately 11:30 p.m., in front of § 87(2)(b) in Manhattan, Police Officer Marc Hummel used force against § 87(2)(b) (**Allegations A and B: Force, § 87(2)(g)**). At the intersection of West 114<sup>th</sup> Street and Frederick Douglas Boulevard in Manhattan, PO Hummel threatened § 87(2)(b) with the use of force (**Allegation C: Abuse of Authority, § 87(2)(g)**), and spoke discourteously to § 87(2)(b) (**Allegation D: Discourtesy, § 87(2)(g)**). Police Officer Sean Sloman struck § 87(2)(b) with a baton (**Allegations E and F: Force, § 87(2)(g)**). An officer struck § 87(2)(b) with a baton, placed § 87(2)(b) in a chokehold, and restricted § 87(2)(b)'s breathing (**Allegations G through I: Force, § 87(2)(g)**). An officer spoke discourteously to § 87(2)(b) (**Allegation J: Discourtesy, § 87(2)(g)**). Sergeant Francisco Garcia used physical force against § 87(2)(b) (**Allegations K and L: Force, § 87(2)(g)**), and spoke discourteously to her (**Allegation M: Discourtesy, § 87(2)(g)**). Police Officer Sokol Karaduzovic threatened § 87(2)(b) and individuals with the use of force (**Allegations N and O: Abuse of Authority, § 87(2)(g)**). PO Karaduzovic spoke discourteously to § 87(2)(b) (**Allegation P: Discourtesy, § 87(2)(g)**) and made an offensive remark to § 87(2)(b) and individuals (**Allegation Q: Offensive Language, § 87(2)(g)**). PO Karaduzovic acted and spoke discourteously to § 87(2)(b) (**Allegations R and S: Discourtesy, § 87(2)(g)**). PO Karaduzovic used physical force against individuals and § 87(2)(b) (**Allegations T and U: Force, § 87(2)(g)**). PO Karaduzovic struck § 87(2)(b) with his baton, and used physical force against § 87(2)(b) (**Allegations V through X: Force, § 87(2)(g)**). Lieutenant Mervin Bennett used force against § 87(2)(b) (**Allegation Y: Force, § 87(2)(g)**). An officer threatened § 87(2)(b) with the use of force (**Allegation Z: Abuse of Authority, § 87(2)(g)**). Officers used force against § 87(2)(b) (**Allegation AA: Force, § 87(2)(g)**). PO Karaduzovic used a chokehold against § 87(2)(b) (**Allegation AB: Force, § 87(2)(g)**). Sgt. Garcia used force against § 87(2)(b) (**Allegation AC: Force, § 87(2)(g)**). Lt. Bennett threatened § 87(2)(b) with the use of force (**Allegation AD: Abuse of Authority, § 87(2)(g)**). Police Officer Damian Weber spoke discourteously to § 87(2)(b) (**Allegation AE: Discourtesy, § 87(2)(g)**), made sexually suggestive remarks to § 87(2)(b) (**Allegation AF: Abuse of Authority, § 87(2)(g)**), and threatened § 87(2)(b) with the use of force (**Allegation AG: Abuse of Authority, § 87(2)(g)**). § 87(2)(g), § 87(4-b)

§ 87(2)(b) and a third individual, identified via investigation as § 87(2)(b), were arrested as a result of this incident (Board Review 01 – Board review 03). No other arrests or summonses resulted from this incident.

One cellphone video compilation, four surveillance videos, and 54 police body worn camera (BWC) videos were received for this incident (Board Review 09 – Board Review 63).

### Findings and Recommendations

**Allegation (A) Force: In front of § 87(2)(b) in Manhattan, Police Officer Marc Hummel used physical force against § 87(2)(b)**

**Allegation (B) Force: In front of § 87(2)(b) in Manhattan, Police Officer Marc Hummel used physical force against § 87(2)(b)**

It is not disputed that PO Hummel pushed § 87(2)(b) and their friend, § 87(2)(b) all provided consistent testimony (Board Review 04 – Board Review 07). They said they were all in front of § 87(2)(b)'s building, located at § 87(2)(b) in Manhattan, together with a relatively large group of people from the community, and celebrating the life of a friend, who had recently died. The celebration began at approximately 7 p.m. and the crowd was large enough that it filled both

the sidewalks and street. § 87(2)(b) § 87(2)(b) and § 87(2)(b) acknowledged that there were people drinking and smoking in the street and on the sidewalk but denied that anyone acted disorderly or engaged in fights. They also said that police officers drove by the location multiple times during the evening, but only instructed the group to socially distance. However, at approximately 11:30 p.m., multiple uniformed and plainclothes officers approached West 114<sup>th</sup> Street from both Adam Clayton Powell (on the east) and Frederick Douglas Boulevards (on the west). § 87(2)(b) § 87(2)(b) and § 87(2)(b) did not know why the officers were at the location, nor did they hear any of the officers issue any commands, though the presence of the officers caused many of the civilians to leave the scene. § 87(2)(b) § 87(2)(b) and § 87(2)(b) remained on the sidewalk in front of § 87(2)(b)'s building together with a few other civilians including § 87(2)(b) and § 87(2)(b) identified via investigation. At some point, PO Hummel and approximately three other officers approached and appeared to speak with § 87(2)(b) and § 87(2)(b). § 87(2)(b) § 87(2)(b) and § 87(2)(b) did not recall what the officers said to § 87(2)(b) and § 87(2)(b) except that § 87(2)(b) told PO Hummel that PO Hummel was standing too close to § 87(2)(b) and that PO Hummel should move back. PO Hummel then pushed § 87(2)(b) on his chest and caused § 87(2)(b) to take three to four steps into the street. PO Hummel approached § 87(2)(b) in the street and pushed him on his back a second time. § 87(2)(b) took additional steps into the street but did not fall. § 87(2)(b) § 87(2)(b) and § 87(2)(b) did not know if § 87(2)(b) sustained any injuries. They did not know why PO Hummel pushed § 87(2)(b) and did not observe § 87(2)(b) act aggressively or make any threatening statements to the officers.

§ 87(2)(b) was uncooperative with the investigation (Board Review 08).

Surveillance footage from § 87(2)(b)'s building, captured the entirety of this incident (Board Review 11). The footage, which has a date and time stamp at the top left corner, begins at approximately 11 p.m., on May 30, 2020, and shows a medium to large crowd of civilians on the north and south sidewalks of West 114<sup>th</sup> Street, and in the street. § 87(2)(b) (white tank top and green sweatpants), § 87(2)(b) (black sleeveless shirt and blue jeans), and § 87(2)(b) (white strapless top and black jeans) are on the northern sidewalk in front of a stoop. There are a few other civilians on the sidewalk, and they together with § 87(2)(b) § 87(2)(b) and § 87(2)(b) appear to be drinking and smoking. At 54:00 per the video player timestamp, § 87(2)(b) (white T-shirt, dark pants, and black and white sneakers) is on the sidewalk and is speaking with § 87(2)(b) § 87(2)(b). § 87(2)(b) is holding a clear plastic cup containing what appears to be a brown liquid in his right hand, whereas § 87(2)(b) is holding a black bottle in his right hand. At 55:12, § 87(2)(b) (blue hoodie, dark pants, and black baseball hat) approaches § 87(2)(b) and § 87(2)(b) on the sidewalk. At 01:00:00, the audio disengages, and the rest of the footage does not capture any audio. At 01:03:27, some of the civilians in the street and on the sidewalk run westbound on West 114<sup>th</sup> Street. At 01:05:18, § 87(2)(b) and § 87(2)(b) join § 87(2)(b) and § 87(2)(b) by the stoop in front of § 87(2)(b)'s building. At 01:08:59, PO Hummel, PO Jose Gordian, PO Thomas Ye, and PO Rusty Garcia, from the 28<sup>th</sup> Precinct, approach from the east (left side of video) and walk towards § 87(2)(b) § 87(2)(b) and § 87(2)(b) on the sidewalk. The officers are led by PO Hummel. § 87(2)(b) is holding a bottle in his right hand, whereas § 87(2)(b) appears to be smoking a cigarette, and is holding a clear plastic cup in his left hand. § 87(2)(b) does not appear to hold anything in his hands. At 01:09:07, PO Hummel appears to speak briefly to § 87(2)(b) and then to § 87(2)(b) at which point PO Hummel and the other officers continue walking west on West 114<sup>th</sup> Street. § 87(2)(b) and § 87(2)(b) appear to turn towards the officers while they walk away and appear to say something. PO Hummel, who is at this point approximately three to four feet away, turns back and begins to walk towards § 87(2)(b) and § 87(2)(b) who continue to speak. At 01:09:38, PO Hummel approaches § 87(2)(b) and § 87(2)(b) and the three men face each other. § 87(2)(b) § 87(2)(b) § 87(2)(b) and a few other civilians are on the sidewalk and a few feet away from PO Hummel, § 87(2)(b) and § 87(2)(b). PO Hummel appears to say something to § 87(2)(b) and § 87(2)(b) and then

points towards the street. § 87(2)(b) then appears to begin to turn his body away from PO Hummel, at which point PO Hummel, using both hands, pushes § 87(2)(b) on his back. § 87(2)(b) appears to stumble, but does not fall, and takes approximately five steps into the street and braces himself on a parked car. PO Hummel then pushes § 87(2)(b) on the chest with both hands, causing § 87(2)(b) to fall and land on his buttocks § 87(2)(b). At 01:09:40, § 87(2)(b) is standing approximately two feet away from PO Hummel, has his back towards PO Hummel, and appears to be speaking with a woman by a parked vehicle. At 01:09:45, PO Hummel approaches § 87(2)(b) and pushes him with both hands on his back a second time. § 87(2)(b) takes approximately three steps forward but does not fall. At 01:09:55, the incident continues between PO Hummel and § 87(2)(b) in the street, which causes multiple officers and civilians to run into the street towards PO Hummel and § 87(2)(b). At 01:10:02, § 87(2)(b), § 87(2)(b) and § 87(2)(b) leave the stoop area and head west on West 114<sup>th</sup> Street.

§ 87(2)(b) recorded short clips of this incident, which appeared to be a compilation on Snapchat (Board Review 09). The video has audio but did not capture any of the video or statements between § 87(2)(b) § 87(2)(b) and the officers prior to the pushes.

The BWCs of Police Officers Frank Giarro, Darrion Grant, Jenna Crawford, Jeffery Martin, Alexa Iiowite, Felipe Ramirez, Keyana Kendall, Juan Carrero, Shazeb Ahmed, and Kingsley Joachim, all from the 28<sup>th</sup> Precinct, show them and multiple officers, including Lt. Bennett, at and about the location. PO Giarro's BWC (Board Review 14) at 03:49, shows some of the officers standing in what appears to be the vicinity of § 87(2)(b). At 04:07, Lt. Bennett points towards the sidewalk, and says, "I want the sidewalk to be dealt with." However, none of the 54 BWCs received depicts any of the above allegations (Board Review 14 – Board Review 23).

Lieutenants Mervin Bennett and Theodore Wells, Sergeant Francisco Garcia, and Police Officers Marc Hummel, Jose Gordian, Sean Sloman, and Sokol Karaduzovic (Board Review 64 – Board Review 70) all said that they were at the 28<sup>th</sup> Precinct stationhouse, ending their tours, when a call came over the radio requesting additional officers to West 114<sup>th</sup> Street between Frederick Douglas and Adam Clayton Powell Boulevards, in regard to a large crowd of civilians congregating on the sidewalks and streets, and acting disorderly. PO Hummel, PO Gordian, PO Sloman, and Sgt. Garcia had their BWCs lodged at the stationhouse charging station when they received the call, and thus did not have their BWCs with them when they arrived on scene. Upon arrival, the officers observed a large crowd of civilians in the street and on the sidewalk, the majority of whom were drinking, conversing, and smoking. Lt. Bennett, Sgt. Garcia, and PO Sloman said that Lt. Bennett instructed officers on scene to disperse the crowd and clear the street. Lt. Bennett did not recall instructing any of the officers on how to disperse the crowd, nor did he recall instructing the officers to use force. Lt. Bennett, Sgt. Garcia, PO Hummel, PO Gordian, PO Ye, PO Garcia began walking westbound on West 114<sup>th</sup> Street towards Frederick Douglas Blvd, and verbally instructed people to leave the street and sidewalk. Most of the civilians complied with the officers' orders, though some appeared upset, and hurled profanities at the officers. PO Hummel said he heard what sounded like bottles crashing into the street, but did not recall seeing anyone throwing bottles, nor did he recall the direction from which the bottles were being thrown. At some point, PO Hummel, PO Gordian, PO Ye (Board Review 71), and PO Garcia, approached a group of civilians that were on a sidewalk in front § 87(2)(b) and PO Hummel ordered the civilians to clear the sidewalk. PO Gordian, PO Ye, and PO Hummel did not recall any other conversation with the civilians, nor did they recall the response and/or reaction of the civilians when ordered to leave the location, except that some of the civilians refused to leave the sidewalk. PO Hummel stated that § 87(2)(b) identified via investigation, said something to PO Hummel and the other officers while they walked away. PO Hummel did not recall what § 87(2)(b) said but stated that whatever § 87(2)(b) said required the officers' attention, and thus prompted PO Hummel to



return to § 87(2)(b) PO Hummel had no other reason for returning to § 87(2)(b) nor did he recall interacting with any other civilians on the sidewalk. PO Hummel, PO Gordian, and PO Ye, all reviewed the surveillance footage, but none had any recollection of the interaction with § 87(2)(b) nor did they recall why PO Hummel turned around and returned to § 87(2)(b) and § 87(2)(b). PO Hummel said he might have approached § 87(2)(b) for the same reasons he approached § 87(2)(b) and that it was possible § 87(2)(b) together with § 87(2)(b) said something to the officers that needed to be addressed. PO Hummel, PO Gordian, and PO Ye did not recall if § 87(2)(b) and/or § 87(2)(b) made any threatening statements to the officers, but PO Hummel said it was possible. PO Hummel acknowledged that § 87(2)(b) and § 87(2)(b) were not considered under arrest when he approached them the second time. PO Hummel, PO Ye, and PO Gordian all had no independent recollection of PO Hummel pushing § 87(2)(b) nor did they know why PO Hummel pushed § 87(2)(b). PO Hummel said he might have pushed § 87(2)(b) on both occasions because § 87(2)(b) was close to the officers, and needed to create a safe distance between officers and § 87(2)(b). PO Hummel said he also might have pushed § 87(2)(b) in order to get him to leave the location since he was still on scene despite orders to disperse. PO Hummel had no other reason for pushing § 87(2)(b).

When appropriate and consistent with personal safety, officers will use de-escalation techniques to safely gain voluntarily compliance from a subject in order to reduce or eliminate the necessity to use force. In situations when it is not safe and/or appropriate to de-escalate, officers may use force when it is reasonable to ensure their safety, that of a third person, or otherwise to protect life, or when it is reasonable to place a person in custody. In determining whether the use of force is reasonable, officers must consider the following: 1) nature and severity of the crime or circumstances; 2) actions taken by the subject; 3) duration of the action; 4) immediacy of the perceived threat or harm to the subject, officers, and/or bystanders; 5) whether the subject is actively resisting arrest; 6) whether the subject is attempting to evade arrest by flight; 7) the number of subjects in comparison to the number of officers; 8) the size, age, condition of the subject in comparison to the officer(s); 9) the subject's violent history, if known; 10) presence of a hostile crowd or agitators; and 11) subject apparently under the influence of stimulant or narcotics which would affect pain tolerance or increase the likelihood of violence. NYPD Patrol Guide Procedure 221 -01 (Board Review 72).

The surveillance footage established that § 87(2)(g) § 87(2)(g) § 87(2)(g) and § 87(2)(b) were all part of a large crowd of civilians that were drinking, smoking, and crowding the sidewalks, and that at some point, multiple uniformed and plainclothes officers arrived on scene, and appeared to verbally ask the crowd to leave. The footage also showed PO Hummel, PO Gordian, PO Ye and PO Garcia, speak to § 87(2)(g) § 87(2)(g) and § 87(2)(g) on the sidewalk, and then walk away, but PO Hummel returned to § 87(2)(g) and § 87(2)(g) after the two appeared to say something to the officers. The footage, and officers and civilian testimonies do not establish what § 87(2)(b) and § 87(2)(b) said to the officers, nor does it establish what if anything PO Hummel said to the two civilians when he approached, except that PO Hummel appeared to point to the street. PO Hummel pushes § 87(2)(b) on the back soon after pointing to the street, and as § 87(2)(b) appeared to be turning away from PO Hummel. PO Hummel pushes § 87(2)(b) a second time on his back while § 87(2)(b) was facing away from PO Hummel and appeared to speak with another civilian. PO Hummel did not recall why he pushed § 87(2)(g) but said he might have done so because he wanted to create a safe distance between § 87(2)(g) and officers, and also because he wanted § 87(2)(b) to leave the location. § 87(2)(g) § 87(2)(g). The footage established that PO Hummel approached § 87(2)(b) on both occasions and § 87(2)(g) s position with his back facing PO Hummel was inconsistent with an obvious safety concern. § 87(2)(g) § 87(2)(b).

While it is unclear from the footage, and civilian and officers' testimonies, whether § 87(2)(b)

said anything threatening to the officers, the footage does not depict § 87(2)(b) acting physically, much less violently or aggressively, towards PO Hummel or any other officer, § 87(2)(g). PO Hummel acknowledged that § 87(2)(b) was not under arrest. § 87(2)(g)

The footage established that § 87(2)(b) was not the only civilian who remained on the sidewalk after the officers approached and appeared to ask the everyone to leave, and that § 87(2)(b) and § 87(2)(b) appeared to be the only two civilians who appeared to say something to PO Hummel and the officers as they walked away and were ultimately the ones PO Hummel used force against. § 87(2)(g)

**Allegation (C) Abuse of Authority: At the intersection of West 114<sup>th</sup> Street and Frederick Douglas Boulevard in Manhattan, Police Officer Marc Hummel threatened § 87(2)(b) with the use of force.**

**Allegation (D) Discourtesy: At the intersection of West 114<sup>th</sup> Street and Frederick Douglas Boulevard in Manhattan, Police Officer Marc Hummel spoke discourteously to § 87(2)(b).**

§ 87(2)(b), § 87(2)(b) and § 87(2)(b) all said that PO Hummel's confrontation with § 87(2)(b) and § 87(2)(b) resulted in a commotion between officers and some of the civilians in the street, and that at some point bottles were thrown into the street and sidewalks. § 87(2)(b) and § 87(2)(b) thus left and headed westbound towards Frederick Douglas Boulevard. § 87(2)(b), § 87(2)(b) and § 87(2)(b) then saw multiple officers escorting PO Hummel, who appeared to be bleeding from his head, towards Frederick Douglas Boulevard. The officers and PO Hummel were in the street, whereas § 87(2)(b), § 87(2)(b) and § 87(2)(b) were on the sidewalk. § 87(2)(b) who appeared upset that PO Hummel had used force against his friends, yelled that the officers were "doing too much," and that there was no need for them to be "putting hands on people." PO Hummel appeared to have heard what § 87(2)(b) was saying, and immediately tried to break free from the officers holding him, then tried to run towards § 87(2)(b) on the sidewalk. The officers grabbed PO Hummel and tried to pull him back, but PO Hummel wrestled and struggled with the officers. Additional officers also approached and tried to restrain PO Hummel. § 87(2)(b), § 87(2)(b) and § 87(2)(b) repeatedly asked what was wrong with PO Hummel, and continued to walk westbound to Frederick Douglas Boulevard. § 87(2)(b) and § 87(2)(b) acknowledged that § 87(2)(b) continued to argue with PO Hummel but denied that § 87(2)(b) made any threatening statements or acted violently towards the officers. § 87(2)(b) said that at some point he told PO Hummel, "I got good lawyer," to which PO Hummel replied, "Who do you think you are stopping? I'll fuck one of you up right now." PO Hummel was still trying to break free from the officers holding him.

§ 87(2)(b)'s video compilation (Board Review 09) at 01:00, shows multiple uniformed and plainclothes officers in the middle of the street on West 114<sup>th</sup> Street. There are then sounds of glass breaking in the street. The officers and some civilians, including § 87(2)(b), § 87(2)(b) and § 87(2)(b) who are on the north sidewalk, all begin to walk westbound on West 114<sup>th</sup> Street. § 87(2)(b) appears to yell, "It is the police. It's them doing too much. Y'all doing too much." At 01:29, the video jump cuts, and shows § 87(2)(b), § 87(2)(b) and § 87(2)(b) approach the intersection of West 114<sup>th</sup> Street and Frederick Douglas Blvd. § 87(2)(b), § 87(2)(b) and § 87(2)(b) are still on the north sidewalk on West 114<sup>th</sup> Street, and there appears to be two uniformed officers, who are not clearly depicted, walking in the middle of the street with PO Hummel. At 01:33, § 87(2)(b) points the camera towards PO Hummel and the two uniformed officers, and

yells, “What did you say?” At 01:33, § 87(2)(b) steps towards the curb of the sidewalk, and appears to shout, “I have got good lawyers,” while looking at PO Hummel and the uniformed officers in the street. § 87(2)(b) is about 10 to 15 feet away from PO Hummel and the officers. § 87(2)(b) grabs the back of § 87(2)(b)'s tank top and pulls him away from the curb of the sidewalk. At 01:36, § 87(2)(b) zooms the camera in towards PO Hummel and the two officers in the middle of the street, and it shows PO Hummel trying to wrest himself from their grasp, and attempt to run towards § 87(2)(b), § 87(2)(b) and § 87(2)(b). § 87(2)(b) and § 87(2)(b) both yell, “What is wrong with him,” whilst walking towards the intersection of West 114<sup>th</sup> Street and Frederick Douglas Blvd.

Police Officer Ajdina Musovic’s BWC captured portions of this incident (Board Review 24). PO Musovic’s BWC (Board Review 24) shows PO Musovic, Lt. Bennett, and multiple other officers in the street on West 114<sup>th</sup> Street. There are some civilians in the street and sidewalk, who appear to be recording the officers on their cellphones. At 00:47, the sounds of bottles breaking in the street is heard in the background, and officers appear to order the civilians in the street to “back up.” At 01:02, the officers begin to walk and run westbound on West 114<sup>th</sup> Street. At 01:50, PO Musovic requests an ambulance for an injured officer, identified via investigation as PO Frank Giarro, who was hit with a bottle. At 02:05, PO Musovic and some officers arrive at the intersection of West 114<sup>th</sup> street and Frederick Douglas Blvd, and begin to walk south on Frederick Douglas Blvd. There are multiple police and emergency medical services vehicles at the intersection. At 02:30, PO Musovic turns and begins to walk towards a crosswalk located at the intersection of West 114<sup>th</sup> Street and Frederick Douglas Blvd, while yelling, “Hummel.” At 02:36, § 87(2)(b), § 87(2)(b) and § 87(2)(b) are on the north sidewalk on West 114<sup>th</sup> Street and are walking towards the intersection. At 02:38, PO Musovic joins a group of officers, who are also on the crosswalk, and appear to be holding PO Hummel who appears to be struggling and trying to break free from the officers.

Lt. Bennett, Sgt. Garcia, PO Sloman, PO Karaduzovic, PO Hummel, PO Gordian, and PO Ye, all said that some of the civilians were throwing bottles at officers while PO Hummel and other officers were attempting to arrest § 87(2)(b) and that PO Hummel, PO Giarro, and one other officer, were hit in the head with bottles, and consequently sustained head injuries (Board Review 73). Lt. Bennett ordered that PO Hummel, PO Giarro and the third officer be removed to the hospital, elevated the incident over the radio to a “Level 1”, and thus requested that officers from other commands respond to the scene. PO Hummel had no independent recollection of anything that transpired after he was hit in the head with the bottle, except that he was upset that he had to leave for the hospital. PO Hummel, however, did not recall how he behaved as a result of being upset, had no independent recollection of any interaction with § 87(2)(b) or any other civilian, nor did he recall or know why he struggled to free himself from the grasp of the officers escorting him to the police vehicle. He did not recall whether his actions had anything to do with § 87(2)(b) nor did he recall whether he attempted to break free from his fellow officers in order to confront and/or fight § 87(2)(b). PO Hummel did not recall making any threatening statements toward § 87(2)(b) did not recall using any profanities toward § 87(2)(b) nor did he recall whether § 87(2)(b) was at any point considered under arrest.

PO Sloman, Lt. Bennett, Sgt. Garcia, PO Gordian, PO Karaduzovic, PO Ye, and PO Sloman did not recall PO Hummel verbally or physically attempting to use force against any civilian or using profanities toward § 87(2)(b).

When appropriate and consistent with personal safety, officers will use de-escalation techniques to safely gain voluntarily compliance from a subject in order to reduce or eliminate the necessity to use force. In situations when it is not safe and/or appropriate to de-escalate, officers may use force when it is reasonable to ensure their safety, that of a third person, or otherwise protect life, or when it is reasonable to place a person in custody, NYPD Patrol Guide Procedure 221-01.



Police officers must always maintain a higher standard of integrity than what is generally expected of others, and must treat every citizen with compassion, courtesy, professionalism, and respect, NYPD Patrol Guide Procedure 200-02 (Board Review 74). However, in prior disciplinary cases, the NYPD has held that the use of profane remarks or language which would ordinarily be inappropriate in dealings with civilians may be excused in the course of a chaotic or stressful situations, nor do they constitute misconduct DAO-DCT Disciplinary Case No. 2017-17005 (Board Review 75).

The cellphone and BWC footage all show multiple officers grabbing onto PO Hummel and trying to pull and restrain him from heading towards § 87(2)(b) who appeared to be engaged in a verbal altercation with PO Hummel. The footage also shows § 87(2)(b) stepping into the street in an apparent response to PO Hummel's actions, and thus had to be pulled back onto the sidewalk by § 87(2)(b). It is, however, unclear from the footage, whether PO Hummel made any verbal threats to § 87(2)(b) nor it is clear what might have prompted the near physical altercation between § 87(2)(b) and PO Hummel. Regardless of what might have prompted this dispute, the investigation found that PO Hummel's attempt to break free from the officers holding him so that he could confront § 87(2)(b) appeared consistent with the verbal threat § 87(2)(b) said PO Hummel made towards him, § 87(2)(g).

§ 87(2)(b) was not under arrest, in close proximity to PO Hummel or any other officer, and was not alleged to have thrown any bottles, § 87(2)(g).

**Allegation (E) Force: At the intersection of West 114<sup>th</sup> Street and Frederick Douglas Boulevard in Manhattan, Police Officer Sean Sloman struck § 87(2)(b) with a baton.**

**Allegation (F) Force: At the intersection of West 114<sup>th</sup> Street and Frederick Douglas Boulevard in Manhattan, Police Officer Sean Sloman struck § 87(2)(b) with a baton.**

**Allegation (G) Force: At the intersection of West 114<sup>th</sup> Street and Frederick Douglas Boulevard in Manhattan, an officer struck § 87(2)(b) with a baton.**

**Allegation (H) Force: At the intersection of West 114<sup>th</sup> Street and Frederick Douglas Boulevard in Manhattan, an officer used a chokehold against § 87(2)(b).**

**Allegation (I) Force: At the intersection of West 114<sup>th</sup> Street and Frederick Douglas Boulevard in Manhattan, an officer restricted § 87(2)(b)'s breathing.**

**Allegation (J) Discourtesy: At the intersection of West 114<sup>th</sup> Street and Frederick Douglas Boulevard in Manhattan, an officer spoke discourteously to § 87(2)(b).**

§ 87(2)(b), § 87(2)(b) and § 87(2)(b) said that a group of officers approached them while they were crossing the street at the intersection of West 114<sup>th</sup> Street and Frederick Douglas Blvd, and that the officers grabbed onto § 87(2)(b). PO Sloman struck § 87(2)(b)'s head with a baton, causing § 87(2)(b) to fall to the ground. The officers grabbed and pressed § 87(2)(b) onto the ground, while PO Sloman struck § 87(2)(b) on his ribs with a baton. § 87(2)(b) said he felt additional baton strikes on his body, but did not recall where on his body, nor did he see which officer struck him. § 87(2)(b) and § 87(2)(b) acknowledged that § 87(2)(b) was struck with batons but did not recall which officers struck him nor did they recall where on § 87(2)(b)'s body he was struck. § 87(2)(b) also said that he felt an officer place their knee on his neck and head, and that he also felt a hand around his neck at some point. § 87(2)(b) did not see which officer(s) placed their knee or hand around his neck and said the officers' actions caused him to experience shortness of breath. § 87(2)(b) and § 87(2)(b) stated that there were multiple officers around and on top of § 87(2)(b) but did not recall seeing any officer place their knee or hand on § 87(2)(b)'s head or neck. § 87(2)(b), § 87(2)(b) and § 87(2)(b) did not know why the officers approached § 87(2)(b) and used force against him and denied that § 87(2)(b) fought

or struggled with the officers at any point during the incident. § 87(2)(b) was arrested, transported to the 28<sup>th</sup> Precinct stationhouse, and charged with resisting arrest and disorderly conduct (Board Review 02). § 87(2)(b) sustained bruising to his head, back, and legs as a result of the baton strikes (Board Review 76) and sought medical attention at § 87(2)(b) Hospital. § 87(2)(b) however, did not sign and return medical release forms, thus the investigation was unable to obtain his medical records from the hospital.

§ 87(2)(b)'s video compilation (Board Review 09) at 01:43, shows § 87(2)(b) and § 87(2)(b) standing in the crosswalk between the north and south sides of West 114<sup>th</sup> Street and Frederick Douglas Blvd. § 87(2)(b)'s back is facing the camera and § 87(2)(b) (white tank top) is standing on the right-hand side of § 87(2)(b). § 87(2)(b) and § 87(2)(b) are facing about three officers, none of whom are clearly depicted, except that one appears to be in plainclothes (blue T-shirt, dark khaki shorts, and a baseball cap). The plainclothes officer, identified via investigation as PO Sloman, is standing to the left of § 87(2)(b) and is holding a baton in his left hand. There are also a group of uniformed officers who appear to be holding onto PO Hummel, who is standing approximately six to eight feet away from § 87(2)(b) and the other officers. At 01:43, just after a video cut, § 87(2)(b) bends forward at the waist, but falls backward onto his back and has his arms splayed out up and out from his body. Due to the video cut, it is unclear what causes § 87(2)(b) to fall, but PO Sloman appears to move his left hand, which is holding the baton towards § 87(2)(b) as § 87(2)(b) falls to the ground. Once § 87(2)(b) is on the ground, he rolls to his stomach and multiple officers appear to be kneeling next to or crouched over him, and they all appear to be reaching for § 87(2)(b)'s hands. It is unclear from the footage whether § 87(2)(b) makes any movement with his body. At 01:47, a uniformed officer, white male, balding with close-cropped blonde or brown hair, appears to be kneeling next to § 87(2)(b)'s head, but has his back towards the camera, and it is thus unclear if his knee is on the ground or on any part of § 87(2)(b)'s body. At 01:50, another uniformed officer, white male, bald, stocky build, who also has his back towards the camera, is standing by § 87(2)(b)'s legs and swings his baton at least twice towards § 87(2)(b) but it is unclear whether the baton contacts any part of § 87(2)(b)'s body. At 01:50, additional officers approach and § 87(2)(b) moves away from the officers and § 87(2)(b).

The BWCs of Police Officers Jenna Crawford (Board Review 17), Ajdina Musovic, Joel Torres, Thomas Ye, and Thomas McGuire captured portions of this incident (Board Review 24 – Board Review 27). PO Torres' BWC (Board Review 25) at 01:10, shows § 87(2)(b) and § 87(2)(b) on the north sidewalk at the intersection of West 114<sup>th</sup> Street and Frederick Douglas Blvd. § 87(2)(b) appears to be holding onto § 87(2)(b)'s shirt, and appears to pull him onto the sidewalk as § 87(2)(b) appears to walk into the crosswalk. At 01:13, PO Hummel, who multiple officers appear to be holding against a police vehicle, yells, "Get him." At 01:14, § 87(2)(b) and § 87(2)(b) are on the crosswalk, and are standing approximately five to six feet away from PO Hummel and the other officers. A uniformed officer, who is not clearly depicted due the rapid movements of the camera, and is holding a baton in his right hand, approaches § 87(2)(b) and § 87(2)(b) and appears to extend his left hand towards them. § 87(2)(b) appears to say to the officer, "I got him." § 87(2)(b) is standing on the north sidewalk and is recording on her cellphone. At 01:15, PO Sloman approaches § 87(2)(b) and § 87(2)(b) appears to raise his left arm, lunge at § 87(2)(b) then bring his left arm down towards § 87(2)(b). § 87(2)(b)'s body is only visible from the shoulders down. § 87(2)(b) begins to scream just as PO Sloman lowers his left hand towards § 87(2)(b) but is unclear from the footage what is happening, except that several other officers appear to run towards § 87(2)(b). At 01:16, § 87(2)(b) falls to the ground, and lands on his back. At 01:19, a uniformed officer, who is not clearly depicted, and is holding a baton appears to strike § 87(2)(b)'s legs at least twice with a baton. At 01:26, there are only about three to four officers around § 87(2)(b) who is lying on his stomach and appears to be handcuffed. Multiple additional officers and police vehicles arrive and approach the intersection from varying

directions (PO Musovic's BWC (Board Review 24) is similar to PO Torres' but from a different angle beginning at 01:50).

PO Ye's BWC (Board Review 26) at 00:25, shows PO Ye and a group of officers running westbound on West 114<sup>th</sup> Street and heading towards Frederick Douglas Blvd. The footage is quite blurry due to the rapid movements. At 00:39, § 87(2)(b) appears to be lying on his back in the street, and appears to have his left arm splayed out away from his body. PO Ye is on the left side of § 87(2)(b)'s body, and appears to be among the group of officers who surround § 87(2)(b) on the ground. The footage is still blurry due to the rapid movements. At 00:44, § 87(2)(b) appears to be turned on his stomach, and at 00:46, a uniformed officer, who is not clearly depicted, and who appears to be kneeling next to PO Ye, appears to have his hand on the back of § 87(2)(b)'s head. From 00:54 to 10:11, § 87(2)(b) yells, "I can't breathe." An officer, it is unclear who, replies, "Bro, you can breathe. Shut the fuck up." There are still multiple officers all over § 87(2)(b) but it is unclear what they are doing, or where on § 87(2)(b)'s body they are touching. At 01:20, § 87(2)(b) says to the officers, "He just hit me. He just hit me." At 01:25, PO Ye and another officer, pick § 87(2)(b) up from the ground and escort him to a marked vehicle.

PO Sloman said he first encountered § 87(2)(b) at the intersection of West 114<sup>th</sup> Street and Frederick Douglas Blvd, when § 87(2)(b) entered the crosswalk, and appeared to walk towards PO Hummel and a group of other officers, who were tending to PO Hummel's injuries. Officers ordered § 87(2)(b) and some other civilians in the vicinity to back off, but § 87(2)(b) continued to walk towards officers yelling and screaming, though PO Sloman did not recall what § 87(2)(b) said. Approximately two uniformed officers, neither of whom PO Sloman could describe, stepped in front of § 87(2)(b) and ordered him to back off, but § 87(2)(b) pushed past the officers, and continued to head towards PO Hummel. PO Sloman, who was about five to seven feet away, approached § 87(2)(b) and ordered § 87(2)(b) to back away. § 87(2)(b) put his hands up in a boxing stance and clenched his fists. PO Sloman, who immediately interpreted § 87(2)(b)'s actions as a threat to harm PO Sloman or other officers, immediately swung his extendable baton, which he held in his hand, towards § 87(2)(b)'s shoulders and arms. § 87(2)(b) however, ducked as PO Sloman swung his baton, and thus resulted in the baton hitting the right side of § 87(2)(b)'s head. PO Sloman denied aiming for § 87(2)(b)'s head when he swung his baton, and said officers are prohibited from hitting civilians in the head with batons. He did not recall hitting § 87(2)(b) any other times with the baton, nor did he have any other reason for striking § 87(2)(b) with the baton. PO Sloman acknowledged that additional officers rushed towards § 87(2)(b) after PO Sloman struck him with the baton, but did not recall what the officers did, except that the officers struggled to obtain § 87(2)(b)'s hands whilst he was on the ground, and that § 87(2)(b) appeared to tense his body and kick at the officers. PO Sloman denied placing his knee on § 87(2)(b)'s neck, denied placing his hand on § 87(2)(b)'s neck, nor did he recall hearing § 87(2)(b) complain of difficulty breathing.

PO Ye acknowledged being one of the officers who approached to assist with the handcuffing of § 87(2)(b) after he was on the ground but did not know or witness the circumstances under which § 87(2)(b) came to be on the ground, denied placing his knee on § 87(2)(b)'s neck, nor did he grab and hold § 87(2)(b)'s neck at any point during this incident. PO Ye also did not recall observing any other officer strike § 87(2)(b) with a baton, and together with PO Sloman did not recall seeing any other officer place their knee on § 87(2)(b)'s neck, did not recall observing any officer grab § 87(2)(b)'s neck with their hands, nor did they otherwise recall hearing § 87(2)(b) complaining of difficulty breathing. PO Ye and PO Sloman also did not recall hearing any other officer use profanities towards § 87(2)(b).

Lt. Bennett, Sgt. Garcia, PO Sloman, PO Karaduzovic, PO Hummel, PO Gordian, and PO Ye, were shown the cellphone and BWC footages, but they all could not identify any of the officers captured around § 87(2)(b). § 87(2)(b) could not identify the officer captured striking § 87(2)(b)'s leg with the baton, nor did they recall witnessing this aspect of the incident.

No Threat Injury and Resistance report was prepared for this incident (Board Review 77), and the Medical Treatment of Prisoner Report (MTPR) prepared for § 87(2)(b) revealed that he sustained swelling to his leg and neck, and ultimately refused medical treatment after complaining of pain to his neck and leg (Board Review 78). § 87(2)(b)'s arrest photograph does not depict any visible injuries (Board Review 79).

When appropriate and consistent with personal safety, officers will use de-escalation techniques to safely gain voluntarily compliance from a subject in order to reduce or eliminate the necessity to use force. In situations when it is not safe and/or appropriate to de-escalate, officers may use force when it is reasonable to ensure their safety, that of a third person, or otherwise to protect life, or when it is reasonable to place a person in custody. NYPD Patrol Guide Procedure 221 -01.

While it is not disputed that officers used force against § 87(2)(b) the circumstances under which the force was used, and the type of force used, all remains disputed. § 87(2)(b) and § 87(2)(b) all said PO Sloman struck § 87(2)(b) in the head and ribs with a baton, and that other officers, none of whom they could describe, placed their knees on § 87(2)(b)'s neck, held § 87(2)(b)'s neck with their hands, and thus resulted in § 87(2)(b) experiencing shortness of breath. § 87(2)(b) and § 87(2)(b) all denied that § 87(2)(b) resisted or acted violently towards any of the officers. PO Sloman said that officers approached § 87(2)(b) because he refused multiple orders to move back, and appeared to move towards PO Hummel, who was injured, and as already established appeared to be disputing with § 87(2)(b). PO Sloman said § 87(2)(b) adopted a fighting stance and clenched his fists when the officers approached, and thus PO Sloman struck § 87(2)(b) with his baton. PO Sloman acknowledged that the baton struck the side of § 87(2)(b)'s head, said he intended to strike § 87(2)(b)'s shoulders and arms, but that § 87(2)(b) ducked and this resulted in the baton hitting his head. PO Sloman denied using any additional baton strikes against § 87(2)(b). The cell phone and BWC footage do not capture whether § 87(2)(b) advances on PO Hummel or takes a fighting stance. It is also unclear due to the poor quality of the videos and/or the positions of the officers and civilian recording, what happened after the officers approached § 87(2)(b) except that § 87(2)(b) appears to fall to the ground after PO Sloman appears to move his baton towards § 87(2)(b). It is again unclear from the footage where on § 87(2)(b)'s body PO Sloman's baton connect, nor it is clear whether § 87(2)(b) ducks or make any movements that could have potentially contributed in him being hit in the head. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

PO Sloman and PO Ye both denied placing their knees against § 87(2)(b)'s neck, touching § 87(2)(b)'s neck with their hands, restricting § 87(2)(b)'s breathing, and did not otherwise observe any other officer use such force against § 87(2)(b). While the video footage established that multiple uniformed and plainclothes officers approached, knelt, and crouched around § 87(2)(b) after he fell to the ground, none of these officers, with the exception of PO Ye, are clearly depicted in the footage, nor are the officers' exact actions clearly established. The footage shows a uniformed officer striking § 87(2)(b)'s leg with a baton, and another officer instructing § 87(2)(b) to "Shut the fuck up," when § 87(2)(b) complained of difficulty breathing, but none of these officers, due to the poor quality of the videos, and the rapid camera movements, are clearly depicted. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

**Allegation (K) Force: At the intersection of West 114<sup>th</sup> Street and Frederick Douglas Boulevard in Manhattan, Sergeant Francisco Garcia used physical force against § 87(2)(b)**

**Allegation (L) Force: At the intersection of West 114<sup>th</sup> Street and Frederick Douglas Boulevard in Manhattan, Sergeant Francisco Garcia used physical force against § 87(2)(b)**

**Allegation (M) Discourtesy: At the intersection of West 114<sup>th</sup> Street and Frederick Douglas Boulevard in Manhattan, Sergeant Francisco Garcia spoke discourteously to § 87(2)(b)**

§ 87(2)(b) said that she was standing next to § 87(2)(b) in the street when officers used force against § 87(2)(b) and caused him to fall to the ground. § 87(2)(b) fearing that the officers might harm § 87(2)(b) tried to extend her body over § 87(2)(b) and repeatedly begged the officers not to harm him. Sgt. Garcia grabbed § 87(2)(b)'s right arm and pulled her approximately 20 feet away from the officers and § 87(2)(b)'s knee and feet dragged across the street whilst Sgt. Garcia pulled her. § 87(2)(b) then tried to get up, but Sgt. Garcia pushed her on her shoulder, causing § 87(2)(b) to return to the ground. Sgt. Garcia then told § 87(2)(b) to, "Get the fuck back," and walked away. § 87(2)(b) said that she sustained bruising to her knee (Board Review 80). § 87(2)(b) sought medical attention for her injuries at § 87(2)(b) Hospital, but did not sign and return medical release forms, thus the investigation was unable to obtain her medical records.

§ 87(2)(b)'s statement was consistent with that of § 87(2)(b) except that she stated that Sgt. Garcia dragged § 87(2)(b) approximately five feet away from § 87(2)(b) and the officers.

§ 87(2)(b)'s video compilation at 01:49, shows § 87(2)(b) kneeling next to § 87(2)(b) soon after he falls the ground. § 87(2)(b) is kneeling between a number of officers, who appear to be attempting to kneel, crouch, and stand over § 87(2)(b). § 87(2)(b) repeatedly yells, "Please stop." At 01:52, Sgt. Garcia, dressed in blue T-shirt, blue jeans, and dark sneakers, appears to grab one of § 87(2)(b)'s arms, and pulls her whilst she is still on the ground, approximately five feet away from § 87(2)(b) and the officers. At 01:54, Sgt. Garcia appears to push § 87(2)(b) on her back while she appears to attempt roll over and stand up. At 01:56, Sgt. Garcia walks away. § 87(2)(b) approaches § 87(2)(b) who screams, "He just assaulted me. Why did he assault me?" § 87(2)(b) and § 87(2)(b) then walk away. The cellphone footage does not depict Sgt. Garcia use profanity toward § 87(2)(b).

PO Torres' BWC (Board Review 25) at 01:23 shows Sgt. Garcia approach and grab § 87(2)(b)'s right arm, while she is sitting in the street, and is a few feet away from § 87(2)(b) and some officers. Sgt. Garcia drags § 87(2)(b) across the ground and then appears to push her on her back. It is unclear from the footage whether Sgt. Garcia issues § 87(2)(b) any verbal commands, but the video captures, just about the same time that § 87(2)(b) is being dragged, a male voice say, "Get the Fuck over there." It is unclear from the footage who makes this statement.

Sgt. Garcia had no recollection of any interaction with § 87(2)(b) and said he might have pulled and pushed her because she appeared to be interfering in § 87(2)(b)'s arrest and to give the officers space to do their jobs. Sgt. Garcia did not know whether the voice captured in the footage saying, "Get the fuck over there," was his, nor did he recall using any profanity toward § 87(2)(b).

Officers may use force when it is reasonable to ensure their safety, that of a third person, or otherwise to protect life, or when it is reasonable to place a person in custody, NYPD Patrol Guide Procedure 221 -01.

Police officers must always maintain a higher standard of integrity than what is generally expected of others, and must treat every citizen with compassion, courtesy, professionalism, and respect, NYPD Patrol Guide Procedure 200-02. However, in prior disciplinary cases, the NYPD has held that the use of profane remarks or language which would ordinarily be inappropriate in dealings with civilians may be excused in the course of a chaotic or stressful situations, and do not constitute misconduct, DAO-DCT Disciplinary Case No. 2017-17005.



§ 87(2)(g) Sgt. Garcia to believed that § 87(2)(b) was interfering in § 87(2)(b)'s arrest given that the footage shows her kneeling next to § 87(2)(b) and her own testimony acknowledged that she tried to extend her body over § 87(2)(b).  
S. § 87(2)(g)

**Allegation (N) Abuse of Authority: At the intersection of West 114th Street and Frederick Douglas Boulevard in Manhattan, Police Officer Sokol Karaduzovic threatened § 87(2)(b) with the use of force.**

**Allegation (O) Abuse of Authority: At the intersection of West 114th Street and Frederick Douglas Boulevard in Manhattan, Police Officer Sokol Karaduzovic threatened individuals with the use of force.**

**Allegation (P) Discourtesy: At the intersection of West 114<sup>th</sup> Street and Frederick Douglas Boulevard in Manhattan, Police Officer Sokol Karaduzovic spoke discourteously to § 87(2)(b) and individuals.**

**Allegation (Q) Offensive Language: At the intersection of West 114th Street and Frederick Douglas Boulevard in Manhattan, Police Officer Sokol Karaduzovic made remarks to § 87(2)(b) and individuals based upon his gender.**

**Allegation (R) Discourtesy: At the intersection of West 114th Street and Frederick Douglas Boulevard in Manhattan, Police Officer Sokol Karaduzovic acted discourteously toward § 87(2)(b).**

**Allegation (S) Discourtesy: At the intersection of West 114<sup>th</sup> Street and Frederick Douglas Boulevard in Manhattan, Police Officer Sokol Karaduzovic spoke discourteously to § 87(2)(b).**

**Allegation (T) Force: At the intersection of West 114th Street and Frederick Douglas Boulevard in Manhattan, Police Officer Sokol Karaduzovic used physical force against individuals.**

**Allegation (U) Force: At the intersection of West 114th Street and Frederick Douglas Boulevard in Manhattan, Police Officer Sokol Karaduzovic used physical force against § 87(2)(b).**

§ 87(2)(b), § 87(2)(b), § 87(2)(b) and § 87(2)(b) did not make nor witness any of the above allegations, but the allegations were, however, captured on BWC.

PO Sokol Karaduzovic's BWC (Board Review 29) at 04:05, shows him standing at the southeast corner of West 114<sup>th</sup> Street and Frederick Douglas Blvd. There are about six to seven civilians standing under a scaffolding on the sidewalk, including § 87(2)(b) who repeatedly yells while a woman holds him back. At approximately 04:13 he says, "What the fuck y'all taking about bitch? Fuck that shit." § 87(2)(b) appears to be pacing back and forth while yelling. At 04:13, PO Karaduzovic extends his left hand forward in the direction of § 87(2)(b) and the other civilians, and is holding a blue can, that appears to be an Oleoresin Capsicum (OC) pepper spray device. At 04:16, PO Karaduzovic yells, "Back up, bitch." At 04:48, § 87(2)(b) approaches a metal railing on the sidewalk and yells, "Y'all pussies." PO Karaduzovic still has his left hand extended forward and is holding the blue can in the direction of the civilians on the sidewalk, many of whom are standing and appear to be recording on their cellphones. At 05:00, an unidentified woman dressed in a red hoodie approaches and stands calmly and quietly by the curb of the sidewalk. PO Karaduzovic shines his flashlight directly into the woman's face, prompting to woman cover her face with her hand. The woman tells PO Karaduzovic to take the light off her face. PO Karaduzovic replies, "I don't got to get shit off your face. Back the fuck up." § 87(2)(b)

is still on the sidewalk, and is leaning against a building. At 05:33, two unidentified women approach PO Karaduzovic and PO Karen Zhao, identified via investigation, and try to move past the officers. PO Karaduzovic and PO Zhao push the two women on their shoulders, and order them to move back to the sidewalk. The two women appear to move to the curb of the sidewalk, and are standing approximately less than three feet away from the officers. At 05:37, PO Karaduzovic yells, “Get out of here. Let’s go,” approaches the two women, and pushes them on their shoulder. The women then appear to turn and begin to walk south towards Frederick Douglas Blvd. At 05:40, PO Karaduzovic, holding his baton horizontally in both hands, extends his hands forward towards the women, and pushes them on their back at least twice with the baton. PO Karaduzovic follows the women as he pushes them, and repeatedly yells, “Move!” There are other officers on the sidewalk, but none appear to push any of the civilians, but rather verbally order them to leave. At 05:49, PO Karaduzovic walks towards § 87(2)(b) who is still leaning against the building, and is approximately six feet away from the curb of the sidewalk and pushes § 87(2)(b) with his baton. § 87(2)(b) does not appear to make any contact with PO Karaduzovic prior to being pushed.

Detective Gregory Tuesday’s BWC (Board Review 30) at 04:40, shows PO Karaduzovic and two uniformed officers standing in the street and facing the southeast sidewalk at the street intersection, where § 87(2)(b) and some civilians appear to be standing. PO Karaduzovic is holding a baton in his right hand, which is raised above his head, and is holding the blue can in his left hand, which is extended towards a group of civilians on the sidewalk. At 05:00, Det. Tuesday turns and faces north on Frederick Douglas Blvd. Lt. Bennett, identified via investigation, says to the officers, “Spread it out, and secure the area.” Another voice then shouts, “Guys line up on the sidewalks, c’mon get these people out of here.” It is unclear from the footage who makes this statement. Det. Tuesday and some officers turn and begin to walk to the southeast sidewalk at the street intersection.

Lt. Mervin Bennett’s BWC (Board Review 32) at 01:57, captures the point when PO Karaduzovic pushes the two women with his baton, and yelling “Move”. Lt. Bennett runs towards PO Karaduzovic and sounds like he yells, “Hold! Hold!” At 02:01, PO Karaduzovic appears to strike § 87(2)(b)’s leg with the baton just as Lt. Bennett enters the sidewalk, at which point a commotion ensues (see Allegation W).

PO Karaduzovic (Board Review 70) said he was standing at the corner of the street to ensure that none of the civilians on the sidewalk entered the street or otherwise acted aggressively towards the officers. PO Karaduzovic did not recall why he held his baton above his head while facing the civilians on the sidewalk, but said it was possible he did that to protect himself, especially given that bottles had been thrown at officers. PO Karaduzovic stated that he pointed the can of OC pepper spray at the civilians on the sidewalk because the chaotic nature of the incident, and that some of the civilians on the sidewalk appeared agitated and were yelling, caused him to fear for his safety, he did so in order to deter them from doing anything that could harm officers or escalate the situation. PO Karaduzovic had no independent recollection of saying “Back up, bitch,” to any of the civilians, nor did he recall why he made that statement. He also did not recall why he pointed his flashlight in the face of the unidentified woman dressed in the red hoodie, nor did he know why he said to her, “I don’t got to get shit off your face. Back the fuck up.” PO Karaduzovic said at some point, he heard an officer dressed in a uniformed white shirt instruct officers to disperse civilians from the sidewalk, but did not recall who that officer was, except that the officer did not appear to be from the 28<sup>th</sup> Precinct. PO Karaduzovic thus verbally instructed the civilians on the sidewalk to leave, held his baton horizontally in both hands in front of his chest, and pushed some of the civilians in the street. PO Karaduzovic did not recall pushing the two women depicted in the BWC, but said he pushed them because they were in the street and were refusing to leave. PO Karaduzovic had no other reason for pushing the two women. PO Karaduzovic said that most of the

civilians on the sidewalk complied with his orders that they leave, except § 87(2)(b) and that § 87(2)(b) extended his arm, and pushed PO Karaduzovic just as PO Karaduzovic approached § 87(2)(b). PO Karaduzovic did not recall pushing § 87(2)(b) with his baton and said he might have done so in response to § 87(2)(b) push and the fact that he remained on the sidewalk.

Lt. Bennett had no independent recollection of this aspect of the incident, nor did he recall what drew his attention to or why he approached the sidewalk just before § 87(2)(b)'s arrest. He did not recall instructing officers to clear the sidewalk, did not know which officer might have done so, nor did he instruct officers to use force in clearing out the streets and sidewalks.

Oleoresin Capsicum (OC) pepper spray devices may be used to gain or maintain control of persons that are actively resisting, exhibiting active aggression, or to prevent individuals from physically injuring themselves or other persons. Active resistance includes physically evasive movements to defeat a member of the service's attempt at control. Active aggression consists of a threat or overt act of an assault (through physical or verbal means), coupled with the present ability to carry out the threat or assault, which reasonably indicates that an assault or injury to any person is imminent, NYPD Patrol Guide Procedure 221-07 (Board Review 81).

Officers may use force when it is reasonable to ensure their safety, that of a third person, or otherwise to protect life, or when it is reasonable to place a person in custody, NYPD Patrol Guide Procedure 221 -01.

Police officers must always maintain a higher standard of integrity than what is generally expected of others, and must treat every citizen with compassion, courtesy, professionalism, and respect, NYPD Patrol Guide Procedure 200-02. In prior disciplinary cases, the NYPD has held that the use of profane remarks or language which would ordinarily be inappropriate in dealings with civilians may be excused in the course of a chaotic or stressful situations, and do not constitute misconduct, DAO-DCT Disciplinary Case No. 2017-17005. Officers, however, cannot use language that likely demeans the inherent dignity of a person. DAO- DCT Disciplinary Case No. 2018-18951 (Board Review 82)

NYPD Patrol Guide Procedure 203-10 prohibits officers from using discourteous or disrespectful remarks regarding a person's gender or gender identity/expression (Board Review 83).

The investigation found that it was reasonable for PO Karaduzovic to be concerned about objects being thrown at officers as that had been the case at some point when the officers first arrived on scene. § 87(2)(g)

the footage established that none of the civilians were in close proximity to the officers, nor were they displaying active aggression or resisting any of the officers. § 87(2)(g)

PO Karaduzovic to refer to § 87(2)(b) or anyone as a "Bitch," § 87(2)(g) saying, "I don't got to get shit off your face," to the unidentified woman who only complained that the officer had shined his flashlight into her face. § 87(2)(g)

when she was standing calmly and quietly. PO Karaduzovic's remarks and action to § 87(2)(b) and the unidentified woman were demeaning, gratuitous, and offensive in nature. § 87(2)(g)

§ 87(2)(g)

PO Karaduzovic said he pushed § 87(2)(b) because § 87(2)(b) remained on the sidewalk and failed to comply with orders to disperse. The footage, however, shows that PO Karaduzovic only repeatedly yelled “move” while pushing the two women, and none of the other officers were, at this point, ordering any of the civilians to leave, other than instructing those in the street to move to the sidewalk. The footage established that § 87(2)(b) did not enter the street at any point during this aspect of the incident, and that PO Karaduzovic turned his attention to § 87(2)(b) after his interaction with the two women and pushed § 87(2)(b) on the shoulder with his baton. PO Karaduzovic did not give § 87(2)(b) any orders or the opportunity to leave the scene prior to pushing him. It is also worth mentioning that none of the other officers on the sidewalk pushed or used force against any of the civilians, but rather verbally ordered the civilians to move back, and clear the street. § 87(2)(g)

**Allegation (V) Force: At the intersection of West 114th Street and Frederick Douglas Boulevard in Manhattan, Police Officer Sokol Karaduzovic struck § 87(2)(b) with a baton.**

**Allegation (W) Force: At the intersection of West 114th Street and Frederick Douglas Boulevard in Manhattan, Police Officer Sokol Karaduzovic struck § 87(2)(b) with a baton.**

**Allegation (X) Force: At the intersection of West 114th Street and Frederick Douglas Boulevard in Manhattan, Police Officer Sokol Karaduzovic used physical force against § 87(2)(b)**

**Allegation (Y) Force: At the intersection of West 114th Street and Frederick Douglas Boulevard in Manhattan, Lieutenant Mervin Bennett used physical force against § 87(2)(b)**

**Allegation (Z) Force: At the intersection of West 114th Street and Frederick Douglas Boulevard in Manhattan, an officer threatened § 87(2)(b) with the use of force.**

**Allegation (AA) Force: At the intersection of West 114th Street and Frederick Douglas Boulevard in Manhattan, officers used physical force against § 87(2)(b)**

**Allegation (AB) Force: At the intersection of West 114th Street and Frederick Douglas Boulevard in Manhattan, Police Officer Sokol Karaduzovic used a chokehold against § 87(2)(b)**

**Allegation (AC) Force: At the intersection of West 114th Street and Frederick Douglas Boulevard in Manhattan, Sergeant Francisco Garcia used physical force against § 87(2)(b)**

**Allegation (AD) Abuse of Authority: At the intersection of West 114th Street and Frederick Douglas Boulevard in Manhattan, Lieutenant Mervin Bennett threatened § 87(2)(b) with the use of force.**

§ 87(2)(b) § 87(2)(b) § 87(2)(b) and § 87(2)(b) did not make or witness any of the above allegations, but the allegations were, however, captured on BWC.

PO Karaduzovic’s BWC at 05:49 (Board Review 29), shows § 87(2)(b) appearing to push PO Karaduzovic’s hand away with his left hand (see screenshot in Board Review 96) after PO Karaduzovic pushes § 87(2)(b) with his baton, causing the camera to shake and footage to blur. At 05:55, PO Karaduzovic appears to be holding onto § 87(2)(b)’s shirt, and the two appear to be

struggling. At 06:06, Lt. Bennett, yells, “Take him down. Tase him if you have to.” At 06:15, § 87(2)(b) and multiple officers are on the ground, but the footage is blurry.

PO Karen Zhao’s BWC (Board Review 33) at 01:37, shows PO Karaduzovic standing to the left of PO Zhao, and the two officers are in the street and facing the civilians on the southeastern sidewalk. At 02:47, PO Karaduzovic puts his left hand on § 87(2)(b)’s chest and § 87(2)(b) appears to raise his right hand in a fist above his head. Lt. Bennett, who was standing behind PO Karaduzovic, and some other officers rush towards § 87(2)(b) and appear to reach for § 87(2)(b)’s left hand. At 02:48, PO Karaduzovic appears to grab the front of § 87(2)(b)’s shirt at § 87(2)(b)’s upper chest, swing his baton down, and appears to strike § 87(2)(b)’s legs at least twice. PO Karaduzovic then appears to pull § 87(2)(b) towards the officers. § 87(2)(b)’s right hand shoots forward, and appears to push Lt. Bennett’s right arm, although the rest of Lt. Bennett’s body is not visible. At 02:49, PO Karaduzovic appears to grab § 87(2)(b) from behind as § 87(2)(b) moves northbound towards West 114<sup>th</sup> Street. PO Karaduzovic’s arm appears to be bent at § 87(2)(b)’s shoulder, but PO Karaduzovic’s forearm is not visible. At 02:50, § 87(2)(b) starts to turn to face south, and PO Karaduzovic stays behind § 87(2)(b). At 02:51, PO Karaduzovic has his right arm around § 87(2)(b)’s upper body, near his face, and § 87(2)(b)’s right arm is raised and is near Lt. Bennett. At 02:51, PO Karaduzovic has his right arm across § 87(2)(b)’s upper chest and possibly near § 87(2)(b)’s neck, but § 87(2)(b) has a thick beard, so it is difficult to tell if PO Karaduzovic’s right arm is high on § 87(2)(b)’s chest or on his neck (see screenshot in Board Review 94). PO Karaduzovic’s left arm is under § 87(2)(b)’s left armpit, and PO Karaduzovic appears to be immobilizing § 87(2)(b)’s left arm. At 02:52, PO Karaduzovic’s right arm appears to be across the front of § 87(2)(b)’s neck, and his forearm appears to touch § 87(2)(b)’s neck (see screenshot in Board Review 95). At 02:52, PO Karaduzovic goes backwards towards the ground, still with his right arm hooked around § 87(2)(b)’s neck.

PO Grant’s BWC (Board Review 15) at 03:32 shows PO Grant running to the southeast corner of West 114<sup>th</sup> Street and Frederick Douglas Blvd, where a group of officers appears to be struggling with § 87(2)(b). The officers appear to be holding § 87(2)(b) against a marked police vehicle, and a male voice is screaming, “Turn around! Turn around.” The officers and § 87(2)(b) then move away from the police vehicle, and at 03:38, PO Karaduzovic is holding § 87(2)(b)’s left arm. Sgt. Garcia, identified via investigation, who is facing § 87(2)(b) appears to hit § 87(2)(b) twice in the chest with his right hand. Sgt. Garcia appears to be holding something in his right hand as he hits § 87(2)(b)’s chest, but it is unclear from the footage what he is holding.

PO Karaduzovic said that he attempted to arrest § 87(2)(b) for obstruction of governmental administration after § 87(2)(b) pushed him, and that § 87(2)(b) repeatedly pushed PO Karaduzovic’s hands away. PO Karaduzovic ultimately grabbed § 87(2)(b)’s shirt and tried to pull him towards the other officers on sidewalk, but § 87(2)(b) began to struggle with the officers. PO Karaduzovic did not recall what if anything § 87(2)(b) did during the struggle, but said § 87(2)(b) was extremely aggressive and refused to comply with officers’ orders that he stop moving and resisting. PO Karaduzovic had no independent recollection of striking § 87(2)(b) with his baton, nor did he recall why he stuck § 87(2)(b) with the baton. He acknowledged that he was the officer captured in the footage behind § 87(2)(b) said his hand appeared to be around § 87(2)(b)’s chest, and that he did not recall making contact with § 87(2)(b)’s neck. PO Karaduzovic did not recall how he came to be behind § 87(2)(b) or how his arm came to be around § 87(2)(b)’s chest but said everything was happening so fast that he might have grabbed § 87(2)(b) to prevent him from fleeing. PO Karaduzovic said he lost his footing at some point during the struggle, and thus resulted in him and § 87(2)(b) heading to the ground. PO Karaduzovic fell first on his back, and § 87(2)(b) fell on top of PO Karaduzovic. The other officers, none of whom PO Karaduzovic could identify, grabbed § 87(2)(b) off PO Karaduzovic,







**Allegation (AE) Discourtesy: At the intersection of West 114<sup>th</sup> Street and Frederick Douglas Boulevard in Manhattan, Police Officer Damian Weber spoke discourteously to § 87(2)(b).**

**Allegation (AF) Abuse of Authority: At the intersection of West 114<sup>th</sup> Street and Frederick Douglas Boulevard in Manhattan, Police Officer Damian Weber made sexually suggestive remarks to § 87(2)(b).**

**Allegation (AG) Abuse of Authority: At the intersection of West 114<sup>th</sup> Street and Frederick Douglas Boulevard in Manhattan, Police Officer Damien Weber threatened § 87(2)(b) with the use of force.**

§ 87(2)(b) § 87(2)(b) § 87(2)(b) and § 87(2)(b) did not make nor witness any of the above allegations, but the allegations were, however, captured on BWC.

PO Weber's BWC (Board Review 38) at 05:00, shows PO Weber as one of the officers assisting with the handcuffing of § 87(2)(b). At 05:26, § 87(2)(b) is handcuffed. PO Weber, and PO Aly, identified via investigation, pick § 87(2)(b) up from the ground. PO Weber says, "Get the fuck up," while picking § 87(2)(b) up from the ground. PO Weber, PO Aly, and PO Geraldo Rodriguez, identified via investigation, escort § 87(2)(b) north on Frederick Douglas Blvd. At 05:30, § 87(2)(b) says to the officers, "Pussies, Yo!" PO Weber replies, "Shut the fuck up, you ugly motherfucker! Look at that bald-ass head you ugly peace of shit." § 87(2)(b) then says to PO Weber, "Where your wife at? I'll fuck your wife." PO Weber replies, "Yeah? You'll fuck my wife? Come fuck around, I'll fuck you in the ass buddy!" At 05:42, § 87(2)(b) says to PO Weber, "I'll fuck the shit out of your wife, nigga." PO Weber replies, "I'm going to fuck the shit out of you fucking [inaudible]."

PO Weber (Board Review 85) acknowledged making the above statements to § 87(2)(b) and said he did so because § 87(2)(b)'s statements about PO Weber's wife upset him. PO Weber had no other reason for making the above statements to § 87(2)(b).

Police officers must always maintain a higher standard of integrity than what is generally expected of others, and must treat every citizen with compassion, courtesy, professionalism, and respect, NYPD Patrol Guide Procedure 200-02. In prior disciplinary cases, the NYPD has held that the use of profane remarks or language which would ordinarily be inappropriate in dealings with civilians may be excused during chaotic or stressful situations, and do not constitute misconduct, DAO-DCT Disciplinary Case No. 2017-17005. Officers, however, cannot use language that demeans the inherent dignity of a person, DAO-DCT Disciplinary Case No. 2018-18951.

NYPD Patrol Guide Procedure 203-10 expressly prohibits officers from making remarks about a person's gender, race, ethnicity, sexual orientation, gender identity and expression. Patrol Guide Procedure 221-01 allows officers to use reasonable force to gain compliance.

While it is not disputed that the officers responded to an otherwise hectic and chaotic situation, the video evidence established that PO Weber's remarks to § 87(2)(b) were made after § 87(2)(b) was in custody, and in direct response to rude statements made by § 87(2)(b) § 87(2)(b).

§ 87(2)(g)  
§ 87(2)(g)  
§ 87(2)(g)  
§ 87(2)(g)

§ 87(2)(g), § 87(4-b)

§ 87(2)(g)  
§ 87(2)(g)

§ 87(2)(g), § 87(4-b)

#### **Civilian and Officer CCRB Histories**

- This is the first CCRB complaint to which § 87(2)(b) and § 87(2)(b) have been parties (Board Review 87 – Board Review 89).
- Lt. Bennett has been a member of service for 24 years, and has been a named subject in 21 CCRB complaints, and 38 allegations, none of which were substantiated, § 87(2)(g)
- PO Hummel has been a member of service for 10 years, and has been a named subject in 11 CCRB complaints, and 23 allegations, none of which were substantiated, § 87(2)(g)
- PO Sloman has been a member of service for five years, and has been a named subject in one CCRB complaint, and three allegations, which are pending investigation, § 87(2)(g)
- PO Karaduzovic has been a member of service for three years, and has been a named subject in two CCRB complaints, and three allegations, which are pending investigation, § 87(2)(g)
- PO Weber has been a member of service for three years, and has been a named subject in two CCRB complaints, and five allegations, all of which are pending investigation, § 87(2)(g)
- Sgt. Garcia has been a member of service for 14-years, and has been a named subject in two CCRB complaints, and two allegations, both of which were mediated, § 87(2)(g)

#### **Mediation, Civil, and Criminal Histories**

- This complaint was not suitable for mediation.
- On March 16, 2022, a Notice of Claim inquiry was sent to the NYC Office of the Comptroller, and the inquiry is still pending. The results will be added to the case file upon receipt (Board Review 90).
- § 87(2)(b)
- § 87(2)(b)

Squad: 1

Investigator: Enoch Sowah 3/16/2022  
Signature Print Title & Name Date

Reviewer: \_\_\_\_\_

Signature \_\_\_\_\_ Print Title & Name \_\_\_\_\_ Date \_\_\_\_\_